

Decorations Act, 2007

Document type: act

Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs

Chunks merged: 7

Decoration Act, 2064 (2007)

Certification and Publication Date

2064.4.32

Amending Acts

1. Decoration (First) Amendment Act, 2065 (2008) 2065.5.8

2. Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075 (2018)
2075.11.19

Act No. 9 of the year 2064 (2007) made by the Legislature-Parliament

An Act Made to Provide Legal Provisions Relating to Decorations

Preamble: Whereas, it is desirable to make timely provisions for awarding decorations such as Titles, Orders and Medals to great personalities who have made distinctive contributions in various fields of national life, as appreciation and honor from the nation,

Now, therefore, the Legislature-Parliament has enacted this Act. Chapter 1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Decoration Act, 2064 (2007)."

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Decoration" means the Title, Order and Medal to be awarded pursuant to this Act.

(b) "Committee" means the Decoration Committee constituted pursuant to Section 4.

(c) "Title" means the Titles pursuant to Section 8.

(d) "Order" means the Orders pursuant to Section 12.

(e) "Medal" means the Medals pursuant to Section 16.

(f) "Prescribed" or "as prescribed" means prescribed or as prescribed in the Rules framed under this Act. Chapter 2

Procedure for Awarding Decorations

3. Power to Award Decorations: (1) The Government of Nepal may, on the recommendation of the Committee, award a decoration pursuant to this Act to a Nepali citizen who has made a distinctive contribution in political, economic, social, cultural, exploratory and other fields of national life or in the international field.

(2) Notwithstanding anything contained in Sub-section (1), the Government of Nepal may award a decoration as an honor to a foreign citizen who has achieved international fame in any field or has made a distinctive contribution for the interest of Nepal.

(3) The decoration to be awarded pursuant to Sub-section (1) or (2) shall be awarded on any national day as specified by the Government of Nepal.

(4) While awarding a decoration pursuant to Sub-sections (1) and (2), the Government of Nepal shall issue a public notice for the information of the general public, mentioning the name of the person receiving the decoration, the type of decoration received, and the contribution made by him/her in national life, and such notice shall also be published in the Nepal Gazette. 4.

Decoration Committee: (1) There shall be a Decoration Committee as follows to present recommendations to the Council of Ministers regarding decorations to be awarded pursuant to this Act:- (a) Senior Deputy Prime Minister, or in the absence of him/her, the senior Minister of the Council of Ministers - Chairperson (b) Minister for Home Affairs - Member (c) Six persons, including women, appointed by the Council of Ministers from among the persons who have made notable contributions to national life, on the basis of the principle of inclusiveness - Members (d) Secretary of Home Affairs - Member-Secretary (2) The meeting of the Committee shall be held at such time and place as specified by the Chairperson of the Committee. (3) The procedure relating to the meeting of the Committee shall be as determined by the Committee itself. 5. Procedure for Recommendation of Decoration: (1) If any office bearer, employee or dignitary mentioned below has performed excellent work in his/her field and contributed to the nation, the following body or office bearer shall send his/her recommendation to the Committee within the specified time, mentioning the details of the contribution made by such office bearer, employee or dignitary in the format as per the Schedule, for awarding a decoration:- (a) In the case of Heads of State, Heads of Government, Ministers or office bearers of equivalent or higher rank of foreign states, and other citizens thereof, by the Minister for Foreign Affairs, (b) In the case of office bearers of constitutional bodies, by the Committee, and in the case of employees, by the head of the concerned constitutional body, (c) In the case of employees of the Legislature-Parliament Secretariat, by the Secretary General of the Legislature-Parliament, (d) In the case of employees related to any Ministry or any person not in government service related to that Ministry, by the concerned Minister, Added by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075.(d1) In the case of office bearers and employees related to a Provincial Government and any person not in government service related to the Provincial Government, by the Chief Minister of the concerned Province, (e) In the case of persons other than those mentioned in Clauses (a) to (d), by the Minister for Home Affairs.

Added by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075.(1a) If any office bearer, employee or dignitary related to a Local Level has performed excellent work in his/her field and contributed to the nation, the concerned Local Level shall send the details of the contribution made by such office bearer, employee or dignitary to the Ministry of Home Affairs of the Government of Nepal, and on the basis of the details so received, the Minister for Home Affairs shall recommend the name of the suitable person to the Committee.

(2) Upon receiving recommendations for a decoration from the concerned body or office bearer pursuant to Sub-section (1), the Committee shall make necessary inquiry and recommend to the Council of Ministers the list of office bearers, employees and dignitaries deemed suitable for awarding a decoration, along with the type of decoration they should receive, pursuant to this Act and the Rules framed under this Act, for awarding

the decoration.

(3) While recommending a Title for a citizen of a foreign state, the recommendation shall be made taking into account the practice of that state as well. Added by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075.(4) Other procedures relating to the recommendation of decorations shall be as specified by the Ministry of Home Affairs of the Government of Nepal. 6. Basis for Recommendation of Decoration: Recommendation for a decoration to the Committee shall be made on the following bases:-

- (a) Having made a special contribution to the work of enhancing the prestige of the nation,
- (b) Having contributed to the nation by doing excellent work in one's field,
- (c) In the case of a person related to government service, having performed the assigned work in a commendable manner,
- (d) In the case of a foreign citizen, having made a special contribution to the prosperity of Nepal and to enhancing the respect of Nepal in the international arena,
- (e) Having made a special contribution to the public interest by performing some courageous or intelligent work,
- (f) Having fulfilled other prescribed bases. 7.

Decoration Investiture Ceremony: (1) Amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075.The President shall present the decoration, its emblem set and the letter patent to the person receiving the decoration on the day of the Decoration Investiture Ceremony. (2) Notwithstanding anything contained in Sub-section (1), if it is necessary to award a decoration pursuant to this Act to a Head of State or Head of Government or distinguished persons of foreign states, the Council of Ministers may arrange for the decoration investiture at any time. (3) If the person receiving the decoration is unable to attend on the day of the Investiture Ceremony for any reason, he/she shall receive the emblem set and letter patent of the decoration from the Ministry of Home Affairs. (4) If a decoration is awarded posthumously to any person, or if the person receiving the decoration dies before the Investiture Ceremony, the emblem set, title and letter patent that he/she would receive shall be given to his/her wife or husband, or in the absence of such wife or husband, to his/her eldest child, or if there is no child, to his/her close relative. (5) A person receiving a decoration shall not wear its emblem set before the Investiture Ceremony. Chapter 3 Titles 8. Types of Titles and Order of Precedence: (1) The types of Titles to be awarded pursuant to this Act shall be as follows:- (a) Nepal Ratna. (b) Rastra Gaurav. (c) Rastradeep. (d) Janasewa Shree. (2) The order of precedence of Titles shall be as per the order mentioned in Sub-section (1). 9. Manner of Wearing Title: The manner of wearing a Title shall be as prescribed. 10. Wearing Title of Foreign Country: (1) At a formal ceremony of a foreign country or foreign embassy, if a Minister or an office bearer of higher rank than that of a Minister of a foreign country is present as a special guest, only the Titles of one's own country and that foreign country may be worn. (2) A person who has obtained Titles of one's own country and a foreign country shall not wear only the Title of the foreign country without wearing the Title of one's own country. 11. Letter Patent of Title: The person receiving a Title shall be granted a letter patent as specified by the Committee. Chapter 4 Orders 12.

Orders: (1) The Orders to be awarded to any person pursuant to this Act shall be as follows:- (a) Rastra Yashobardhak. (b) Nepal Sewa Praveen. (c) Samaj Sewa Ratna. (2) The Orders to be awarded only to the

Nepali Army pursuant to this Act shall be as follows:- (a) Param Paurkha Bhaskar. (b) Ati Paurkha Bhaskar. (c) Maha Paurkha Bhaskar. (3) The Orders to be awarded only to the Police pursuant to this Act shall be as follows:- (a) Nepal Pratap Subhushan. (b) Nepal Pratap Abhushan. (c) Nepal Pratap Bhushan. 13. Order of Precedence: (1) The order of precedence of Orders shall be as follows:- (a) Rastra Yashobardhak. (b) Param Paurkha Bhaskar. (c) Nepal Pratap Subhushan. (d) Nepal Sewa Praveen. (e) Ati Paurkha Bhaskar. (f) Nepal Pratap Abhushan. (g) Samaj Sewa Ratna. (h) Maha Paurkha Bhaskar. (i) Nepal Pratap Bhushan. (2) While determining the order of precedence of Titles and Orders, the order of precedence of Titles shall be above that of Orders. 14. Order of Wearing Orders: (1) A person who has received more than one Order shall, while wearing the Orders received by him/her, wear them from the right side according to the order of precedence. (2) While wearing the Orders of one's own country or their miniature or ribbon together with decorations received from foreign states or their miniature or ribbon, the Orders of one's own country or their miniature or ribbon shall be worn on the right side of the decorations of foreign states or their miniature or ribbon. (3) While wearing more than one Order received from a foreign state, they shall be worn in the chronological order of the date of receipt. 15. Addition of Khukuri if Order Repeated: If a person who has received an Order receives the same Order again, one Khukuri each made of the same metal as that Order shall be added to the ribbon of the Order previously received, for each such additional time. Chapter 5 Medals 16. Types of Medals and Order of Precedence: (1) The Medals to be awarded to any person pursuant to this Act and their order of precedence shall be as follows:- (a) Lok Shree Medal. (b) Rastra Sewa Medal. (c) Satkarya Medal. (d) Samaj Sewa Medal. (e) Shiksha Jyoti Medal. (f) Sagarmatha Medal. (g) Sukirti Medal. (h) Birata Medal. (i) Shaurya Medal. (j) Prakritik Prakop Pidotoddhar Medal. (k) Bikash Ratna Medal. (l) Shanti Medal. (m) Vigyan Praveen Medal.

Amended by the First Amendment.(n) Constituent Assembly Election Medal.

(2) While determining the order of precedence of Orders and Medals, the order of precedence of Orders shall always be above that of Medals. 17. Addition of Sign if Medal Received Again: If a person who has already received a Medal once receives a Medal again, a Khukuri of 1 centimeter in length, made of bronze for the first time, copper for the second time, silver for the third time and gold for the fourth time, shall be added to the ribbon of the medal received for the first time, for each such additional time. 18. Order of Wearing Medals: (1) A person who has received more than one Medal shall, while wearing the Medals received by him/her, wear them from the right side according to the order of precedence.

(2) While wearing the Medals of one's own country or their miniature or ribbon together with decorations received from foreign states or their miniature or ribbon, the Medals of one's own country or their miniature or ribbon shall be worn on the right side of the decorations received from foreign states or their miniature or ribbon. Chapter 6

Miscellaneous

19. Approval Required for Accepting Title, Honor or Decoration of Foreign Country: (1) No Nepali citizen shall accept any title, honor or decoration awarded by a foreign country without obtaining the approval of the Government of Nepal before accepting it.

(2) While obtaining approval pursuant to Sub-section (1), it shall be obtained through the Committee. 20. Writing of Praise of Decoration: (1) The praise as prescribed according to the decoration received may be written before the name of the person receiving the decoration.

(2) Notwithstanding anything contained in Sub-section (1), while writing praise before the name of a person

who has received more than one decoration, it shall be written according to the order of precedence of the decorations received by him/her. 21. Other Provisions Relating to Decoration: Other conditions required for awarding a decoration pursuant to this Act and provisions relating to the design, size, type and emblem set of the decoration shall be as prescribed. 22. Provision Relating to Miniature, Ribbon and Rosette: A person receiving a decoration may wear a miniature, ribbon and rosette as prescribed. 23. Permission to Purchase: (1) If a person loses or destroys the emblem of a decoration received by him/her, he/she may purchase it from the Ministry of Home Affairs or a place specified by that Ministry.

(2) The miniature and rosette of a decoration may be purchased from the Ministry of Home Affairs or a place specified by that Ministry. 24.

Prohibition on Bringing Decoration into Use: No institution or person shall give any decoration by adopting a name, design and shape resembling the decoration awarded by the Government of Nepal. 25. Power to Alter or Add to or Subtract from Decoration: The Government of Nepal may, as required, add to or subtract from or alter the number, size, type and design of decorations. 26. Power to Cancel Decoration: (1) The Government of Nepal may cancel a decoration awarded to any Nepali citizen or foreign person pursuant to this Act in the following circumstances:- (a) If he/she takes up arms or attempts to take up arms against Nepal, or assists an enemy state in any manner, or spies against Nepal, (b) If he/she participates in a war on behalf of an enemy state of Nepal during a war in which Nepal also participates, (c) If he/she sells or pledges the decoration received by him/her, (d) If he/she uses the decoration in a manner contrary to the dignity of the decoration received by him/her, or allows another person to use it. (2) If any decoration is cancelled pursuant to Sub-section (1), the Government of Nepal shall issue a public notice for the information of the general public, mentioning the name of the person receiving the decoration and the decoration so cancelled. 27. Voluntary Surrender of Decoration: If anyone wishes to voluntarily surrender any decoration received pursuant to this Act, he/she shall submit the emblem set of such decoration to the Ministry of Home Affairs. 28. Power to Frame Rules: The Government of Nepal may frame necessary Rules for the purpose of implementing the objectives of this Act. 29. Repeal: (1) The Decoration Rules, 2048 (1991) is hereby repealed. (2) Provisions relating to decorations awarded pursuant to the Rules referred to in Sub-section (1) shall be as prescribed. Schedule (Relating to Sub-section (1) of Section 5) Decoration Recommendation Form Government of Nepal Ministry/Secretariat/Commission/Department Name: Rank: (If serving in government service) Field of work and description of work: (In the case of a person working in a field other than government service) In the case of a person serving in government service: Rank and age at initial appointment Date of promotion to current rank and age Total service Name and date of decoration if already received Remarks Full details of the reason/basis for recommending the award of a decoration and the evidence supporting such reason/basis: Recommender's Signature: Name: Date: